

QUEENSLAND INDUSTRIAL RELATIONS COMMISSION

Workers' Compensation and Rehabilitation Act 2003

Cory Lea Shepherd

Appellant

v

Workers' Compensation Regulator

Respondent

Matter No. WC/2024/227

**APPEAL AGAINST DECISION OF RESPONDENT PURSUANT TO SECTION 549
APPELLANT'S ELECTION UNDER DIRECTION 5, AND DIRECTIONS REQUESTED**

FURTHER TO direction 5 of the Further Directions Order (3) dated 19 August 2026, the Appellant elects to proceed to a second conference under section 552A, and asks that the Commission direct:

1. **That the appeal be listed for a second conference under section 552A of the Workers' Compensation and Rehabilitation Act 2003**, on a date fixed by the Commission, at which the directions requested at 2 to 6 below may be dealt with.
2. **That, at the opening of the conference, the Respondent state whether it maintains the contention in paragraph 27 of its amended statement of facts and contentions of 13 May 2026**, having regard to its notified case as at 30 September 2026: (a) its review decision found that the Appellant sustained a personal injury of a psychological nature and that employment was a significant contributing factor, to the extent stated, and the claim was rejected under section 32(5) (facts 261 and 262); (b) paragraph 27 does not identify the management action relied upon (fact 303, admitted 8 September 2026); (c) it has named no medical or expert witness and served no expert report; and (d) its outlines of evidence describe the seven-hour break of 17 to 18 March 2024 as "the result of human error" and "a rostering practice issue for the line manager", and the second decline of the paid Special Pandemic Leave request as one that "appears to have been made in error"; and, if it maintains the contention, that it particularise it under 5 below.
3. That the Appellant have leave to file in the Industrial Registry and serve on the Respondent the Second Amended Statement of Facts and Contentions (Form 9A) enclosed, under section 451(2) of the Industrial Relations Act 2016. It accepts that the Appellant bears the onus of proof, retains the three stressors, and sets out their particulars by dated event against the facts admitted on 8 September 2026. It adds no new stressor or allegation. The Appellant's list of witnesses filed, and outlines of evidence served, on 9 September 2026 under directions 1 and 2 stand as filed and served on that date.
4. **That the Respondent state, by 4.00 pm on a date fixed by the Commission, whether it maintains its dispute as to the authenticity of each of the ten documents at Annexure A to the Appellant's notice to admit documents served 28 August 2026 that remain outstanding and, if so, on what ground**; being Tabs 1, 5, 17, 18, 19, 21, 22, 23 and 31, of which the Respondent said on 23 September 2026 that it had requested copies from Metro South Hospital and Health Service, and Tab 24, which its email of that date did not address. The facts recorded in each, other than the register at Tab 31 (facts 228 to 231), were admitted on 8 September 2026. The Appellant asks that any dispute not so maintained cease to be in issue, so that the document is taken to be authentic for the hearing, without affecting any question of relevance or weight; or that the Commission make such other order about authenticity as it considers appropriate.
5. **That the Respondent state, for each causal particular in the Second Amended Form 9A**, namely 1(b), 1(d), 1(f) to 1(h), 1(k) and 1(l); 2(a) to 2(i), 2(l) and 2(m); and 3(b) to 3(f), whether it contends that the particular was management action and, if so, the facts on which it relies to say that the action was reasonable and taken in a reasonable way, by the date fixed for any amended statement of facts and contentions under 6 below. The other particulars are context, or the record of how the matters were handled, and no answer is sought on them.
6. **That the Respondent have leave to file and serve an amended statement of facts and contentions, and any amended list of witnesses and outlines of evidence**, if it wishes, within 14 days after the filing of the Second Amended Form 9A.

7. Such further directions as the Commission considers appropriate.

Enclosed with this page: the Appellant's letter of explanation, with the schedule of the documents relied on and their status and an index of the particulars; and the Second Amended Statement of Facts and Contentions (Form 9A). The notices to admit, the Respondent's responses and the documents themselves are available to the Commission on request.

Dated 1 October 2026

A handwritten signature in black ink, consisting of a large, stylized 'C' followed by a horizontal line and a diagonal stroke.

Cory Lea Shepherd
Appellant (self-represented)